

September 18, 2026, Civil Law & Motion Tentative Rulings

1. CL0003758 Alford Presser., Jr. vs. California Department of Transportation

Defendant California Department of Transportation's motion to set aside Plaintiff's entry of default is withdrawn from calendar. The Court approved a stipulation to grant this relief.

2. CU0001813 USA Bath California Remodeling, Inc. vs. David Sweat

Attorney James L. Arrasmith's motion to be relieved as counsel is granted.

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. *See Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Cal. Rules of Court, rule 3.1362(a), (c), (e). The requisite forms must be served "on the client and on all parties that have appeared in the case." Cal. Rules of Court, rule 3.1362(d).

Attorney Arrasmith represents Defendant David Sweat. Arrasmith has filed Judicial Council Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Arrasmith moves to be relieved as counsel, citing a deterioration of the working relationship with his client. Notice of the request has been served on the client and all parties. No opposition has been filed. The Court finds this to be proper grounds for withdrawal. *See Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (a breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw).

An updated proposed order shall be lodged. This order will be effective only upon filing proof of service of the signed order upon the client at issue.

3. CU0001978 Bridgett Higginbotham vs. Pacific Specialty Insurance, et al.

Defendant Select Environmental's ("Select" or "Settling Defendant") unopposed motion for determination of good faith settlement is granted.

Legal Standard

"A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." Code Civ. Proc. § 877.6(c).

In making a good faith settlement determination, a trial court should "inquire, among other things, whether the amount of the settlement is within the reasonable range of the settling